BYRON TEVIN TINOTENDA MABAMBE

Versus

ZIMBABWE REVENUE AUTHORITY

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare, 23, 30 June, 2 July 2026.

T. Tembani, for the applicant

T. L. Marange, for the respondent

COURT APPLICATION

CHIRAWU MUGOMBA J

This matter was placed before me with the heading, ‘ court application in terms of s4 of the Administrative Justice Act, [Chapter *10:28*], ‘ the AJA’ as read with s68 of the constitution of Zimbabwe 2013’. Let me hasten to state that there was nothing ‘constitutional’ about the application in the misleading heading. Mr. *Tembani* for the applicant put it down to an, ‘error’.

The applicant describes himself as an owner of a vehicle seized by the respondent, which is a body corporate established in terms of the Revenue Authority Act, [Chapter *23:11*.]. He states in his application that he is approaching the court in terms of s4 of AJA as read with s196 of the Customs and Excise Act, [Chapter 23:02], ‘ the CEA, for an order seeking the setting aside of the decision of the respondent dated the 1st of August 2025. The decision had the effect of forfeiting his vehicle on the basis of a violation of the conditions of a Temporary Import Permit, ‘ TIP’. He avers that on the 17th of December 2024, his sister by the name Florence Ndozia was granted a temporary import permit so that she could temporarily import the applicant’s vehicle into Zimbabwe. The vehicle developed faults whilst in

Zimbabwe. She surmised on her own that there would be no issues if the vehicle was left in Zimbabwe. While on his way to South Africa, the vehicle was intercepted and seized on the basis that it had no valid TIP and that the TIP obtained by Florence did not have his name. He was advised to make representations to the Regional Manager for purposes of seeking a release of the vehicle. The response received was that he had violated the law and hence the vehicle would not be released. An appeal to the Commissioner of Customs did not yield expected results as the decision of forfeiture was upheld. This decision is manifestly harsh, excessive and unfair because other vehicles in similar circumstances have been released. The applicable law being s38 of the CEA, as read with s104(6) of SI 154 of 2001 do not state that if they are violated, then a forfeiture order must be made. A fine would have met the justice of the case. The applicant thus seeks an order setting aside the decision of the respondent dated the 1st of August 2025 and that applicant pays all related costs associated with escorting the vehicle to the Republic of South Africa and that each party bears their own costs.

In opposing the application, the respondent makes the following averments. The deponent narrates the events that led to the seizure and forfeiture of the vehicle in greater detail than what the applicant submitted. That the applicant as a resident of Zimbabwe did not qualify to import the vehicle under a tourist rebate but fraudulently did so using a non-resident who was not travelling with him. The applicant's statements are inconsistent. In one breath he avers that Florence is his sister and in another, he states that she is his wife. He was not cooperative when requested to give details regarding the whereabouts of Florence, who as matters stand had violated s104(4) of the CEA. The conditions of the TIP were clearly outlined on the document given to Florence. The applicant holds no foreign work or residence permit and his intention was to use the vehicle fraudulently in Zimbabwe and evade payment of duty. He also failed to prove that he wanted to re-export the vehicle to the Republic of South Africa.

Nothing turns on the answering affidavit.

In the heads of argument, the following submissions are made for the applicant. That the issue for determination is whether or not the decision of the

respondent dated the 1st of August 2025 ought to be set aside? Section 104(6) of the CEA Regulations as per SI 154/2001 addresses issues of a tourist who has been granted a rebate of duty and who departs from Zimbabwe for any reason. Section 104(7) states that any goods which are left in Zimbabwe in contravention of ss 6 shall be liable for seizure. The provisions in paragraphs 4 and 5 ought to be read together. When s104(6) is violated, the respondent is compelled to seize the applicant's vehicle. The provisions do not speak to forfeiture. The respondent can only seize the vehicle in terms of s193(6) of the CEA. The respondent on the basis that s104(6) did not provide for automatic forfeiture, ought to have exercised discretion in terms of s193 (6) (a) in a fair and reasonable manner considering that the applicant had given the vehicle to someone else who had committed the offence- *V vs. ZIMRA,* HH-643-19. The punishment does not align with the circumstances of the case. Persons in similar circumstances must be treated the same- *Ipomea vs ZIMRA,* HH-701-22. At the hearing, Mr. *Tembani* largely abided by the heads of argument. He submitted that essentially the offence did not deserve the punishment meted out. The court engaged him on the nature of the application, whether it was not one for review disguised as an ordinary court application. The decision in question had been made by an administrative authority. In response, he made reference to the decision in *Gwaradzimba* N.O vs *Gurta AG,* SC-10-15.

Per *contra,* the respondent submits as follows. The first issue is whether or not the seizure and forfeiture of the applicant's vehicle is lawful? Section 9(1) of the CEA gives an officer of the respondent powers to stop and search any person. Section 193(1) accords an officer to seize any goods if s/he has a reasonable belief that the same is liable for seizure. This is buttressed by s193(2) of the CEA. On the other hand s104(2) of the regulations provides that a rebate of duty may be granted in respect of goods not intended for consumption in and temporarily imported into Zimbabwe by a tourist for their own personal use but not for disposal, trade or commercial purposes. As per s104(6) upon exit, such goods shall be removed upon departure unless prior written permission has been granted by the Commissioner of the respondent. The applicant's vehicle having been imported into Zimbabwe through a tourist rebate could only be validly in Zimbabwe for a period not exceeding

three months. The vehicle was in Zimbabwe for a period in excess of that period. The applicant's explanation that it was left by his sister after developing a mechanical fault holds no water. There was nothing holding the applicant back in approaching the Commissioner and state that the vehicle was not functional. Once it is admitted or proved that the vehicle was in Zimbabwe illegally, the provisions of s104(10) come into operation. The forfeiture was occasioned by the fact that the vehicle could not be legally imported into Zimbabwe since it was more than ten years old. Section 104 of the regulations make it an offence to leave behind a vehicle upon exit without seeking permission from the Commissioner of Oaths. The actions of the respondent were legal and there is no basis for granting the order sought by the applicant- *Mayor Logistics (pvt) Limited v Zimbabwe Revenue Authority,* CCZ-7-14. If a decision made by an administrative authority is legal, rational, procedurally proper and justiciable as the one made in this matter, the courts have no choice but to uphold it- *Affretair (pvt) Limited vs. MK Airlines,* 1996(2) ZLR 15. At the hearing, Mr. *Marange* submitted that the application is essentially one for review. Further that it is replete with mistakes as it makes reference to the constitution in the heading yet it is not a constitutional application. Further, there is misaligned references to annexure C which is not what it is purported to be in the founding affidavit. The application is essentially one for a review and is replete with gross misrepresentation. The applicant in his founding affidavit referred to Florence as his sister and yet when he was interviewed, he referred to her as his wife. It is clear that there was no compliance with the law. The conditions accompanying issuance of the TIP are clearly stated and yet these were breached. The decision for forfeiture was made in terms of s38 of the CEA. The vehicle in question is a 2001 one and it would not on the basis of its age even be eligible for a rebate.

It is clear that what the applicant is questioning is not the lawfulness of the seizure of the vehicle. His bone of contention is that the decision of forfeiture is manifestly harsh, excessive, unlawful and unfair. In his founding affidavit paragraph 9, he cites the reasons why he is questioning the decision of forfeiture. In paragraph 9(c) he unequivocally admits that ' *inasmuch (sic) there is a violation, this is a typical case wherein a fine would have been in the interests of real and substantive justice'.* In his appeal to the Commissioner of Customs and Excise, dated the 10th of April

2025, in the first paragraph under mitigation and points of law, he acknowledged his guilt but appealed to the 'humane' face of the authority given the circumstances under which the vehicle was left in Zimbabwe. He acknowledged the import of the law guiding TIP and its implications as per s104 of the regulations. The legal issue that then arises is whether or not the respondent's actions in forfeiting the vehicle were reasonable and fair as per s3(1) (a) of the AJA as read with s4(1).

The contention by Mr. *Marange* that the application is a disguised review holds no water in light of the *Gwaradzimba* decision to the effect that a review is not the only avenue and that there is nothing in s4(1) of AJA to suggest that any other form of an application for judicial review would in any way offend against that subsection as long as it meets the requirements of an ordinary court application.

Having stated the above, it behoves the court to consider the law as outlined by the applicant and the respondent.

Section 38 pf the CEA reads as follows,

No importation without entry

(1) No goods shall be imported into Zimbabwe without entry being made and without the duty being paid or secured.

(2) The owner or occupier of a customs area or transit shed shall not remove or permit the removal of uncustomed goods placed in the customs area or transit shed without written authority from an officer, and no person shall remove or take delivery of uncustomed goods from a customs area or transit shed without written authority from an officer.

(3) No carrier of goods or operator of a pipeline shall remove or discharge or permit the removal or discharge of uncustomed goods from the ship, aircraft, vehicle or pipeline in his charge or control without written authority from an officer, and no person shall remove, discharge or take delivery of uncustomed goods from any ship, aircraft, vehicle or pipeline without written authority from an officer. (4) In subsection (1)— "duty" includes any import tax which is payable in terms of the Value Added Tax Act [Chapter 23:12].

On the other hand, the relevant provisions in S.I 154/2001 104 read as follows.

104. Rebate of duty for tourists

(1) In this section— "tourist" means any person who is not resident in Zimbabwe but travels to Zimbabwe for a period of time specified at the time of his arrival; "vehicle" means any caravan, trailer or motor vehicle of Customs Tariff Headings 87.02, 87.03, 87.04; or 87.11: Provided that— (a) Tariff heading 87.02 shall apply to vehicles designed for transport of fifteen or more people including the driver; and (b) tariff heading 87.04 shall not apply to vehicles whose gross vehicle weight (GVW) exceed five tonnes.

(2) Subject to this section, a rebate of duty may be granted in respect of goods not intended for consumption in and temporarily imported into Zimbabwe by a tourist for his own personal use, but not

for disposal, trade or commercial purposes: Provided that the duty may be remitted on any vehicle which, having been temporarily imported into Zimbabwe in terms of this section is damaged and surrendered unconditionally to the Commissioner.

(3) The Commissioner may require the importer to lodge sufficient security to cover the duty on any goods imported under rebate in terms of this section, pending the exportation of the goods, or the payment of the full duty thereon, or in the case of vehicles to which the terms of the proviso to subsection (2) refer, their unconditional surrender.

(4) No tourist to whom a rebate of duty has been granted in terms of this section shall sell, offer or display for sale, lease, hire, lend, pledge or in any manner whatsoever, whether gratuitously or otherwise, dispose of to any resident of Zimbabwe or any other person any goods in respect of which such rebate has been granted, without the prior written permission of the Commissioner and payment of the full duty based on a value applicable at the time of importation.

(5) If any goods are dealt with or disposed of contrary to subsection (4), they shall be liable to seizure.

(6) A tourist who has been granted a rebate of duty in terms of this section and who departs from Zimbabwe for any reason, shall remove such goods from Zimbabwe on his departure, unless he has obtained the prior written permission of the Commissioner to leave them in Zimbabwe.

(7) Any goods which are left in Zimbabwe in contravention of subsection (6) shall be liable to seizure.

In rejecting the appeal against forfeiture of the vehicle, the Commissioner gave the following reasons in a letter dated the 1st of August 2025.

Re: Appeal against release terms: Notice of seizure number 0458261 of 13 January 2025: 1 X 2011 BMW: ……..BYRON TEVIN MABAMBE

Reference is made to your letter wherein you are appealing against the decision of the Regional Manager Region 3.

The fact of the matter are that the above -mentioned vehicle was intercepted by ZRP Gundu whilst being driven by you and you then presented to ZIMRA officers who attended the case a Temporary Import Permit (TIP) reference number ZWBB PV61746 of 17 December 2024 issued to Florence Ndozia. Florence Ndozia was not present at the time of interception of the vehicle indicating abuse of the TIP conditions. Further investigations revealed the following; -

i. *You are the registered owner of the vehicle and you used a bone fide visitor to import the vehicle on temporary importation permit for visitor's vehicles on your behalf as you do not qualify to do the same. You do not hold any valid foreign permit which is one of the pre-requisites to qualify to be granted a tourist rebate for the vehicle. You are therefore not legally allowed to import foreign registered vehicles into Zimbabwe on TIP since you are not a visitor to Zimbabwe as stipulated by s104 of the Customs and Excise (General(Regulations – Statutory Instrument 154 of 2001. As a Zimbabwean resident, you were*

supposed to have paid duty on the motor vehicle in the first instance as stipulated by section 38 of the Customs and Excise Act [Chapter 23:02].

ii. *Forence Ndozia who imported the stated vehicle on TIP violated the provisions of the TIP in that she exited the country leaving the vehicle behind without the prior authority of the Commissioner in contravention of s104(6) of the Customs and Excise (General) Regulations.*

iii. *The vehicle is more than ten years old from the date of manufacture; therefore its importation is prohibited. The vehicle remains subject to the 10 -year importation ban as stipulated in Statutory Instrument 54 of 2024,*

Based on the aforementioned, I regret to advise you that your appeal has not been successful. The decision communicated to you by the Regional Manager in a letter dated 28 February 2025 is hereby upheld. Your appeal is therefore dismissed and the vehicle has been declared forfeit to the state and will be disposed of in due course.

The applicant has invoked the AJA in seeking relief in particular s4. In my view reference to s68 of the constitution is unfortunate and tardy but it is not fatal to the application. Section 4 of AJA should of necessity be read with s3 as follows:-

"3 Duty of administrative authority

(1) An administrative authority which has the responsibility or power to take any administrative action which may affect the rights, interests or legitimate expectations of any person shall—
(a) act lawfully, reasonably and in a fair manner; and
(**b)** act within the relevant period specified by law or, if there is no such specified period, within a reasonable period after being requested to take the action by the person concerned; and
(c) where it has taken the action, supply written reasons therefor within the relevant period specified by law or, if there is no such specified period, within a reasonable period after being requested to supply reasons by the person concerned.

4 Relief against administrative authorities

4(1) Subject to this Act and any other law, any person who is aggrieved by the failure of an administrative authority to comply with section three may apply to the High Court for relief.

(2) Upon an application being made to it in terms of subsection (1), the High Court may, as may be appropriate-
(a) confirm or set aside the decision concerned;
(b) refer the matter to the administrative authority concerned for consideration or reconsideration;
(c) direct the administrative authority to take administrative action within the relevant period specified by law or, if no

such period is specified, within a period fixed by the High Court.

(d) direct the administrative authority to supply reasons for its administrative action within the relevant period specified by law or, if no such period is specified, within a period fixed by the High Court;

(e) give such directions as the High Court may consider necessary or desirable to achieve compliance by the administrative authority with section three.

(3) Directions given in terms of subsection (2) may include directions as to the manner or procedure which the administrative authority should adopt in arriving at its decision and directions to ensure compliance by the administrative authority with the relevant law or empowering provision."

I have already made a finding that the respondent acted lawfully as also admitted by the applicant who was in clear violation of the law. But was the decision of forfeiture reasonable and fair?

Section 5 of the AJA outlines the factors that a court must take into account in deciding whether or not there has been a breach of s3(1) as follows:-

5. Determining factors

For the purposes of determining whether or not an administrative authority has failed to comply with section three the High Court may have regard to whether or not—

(a) the administrative authority has jurisdiction in the matter;

(b) **the enactment under which the action has been taken authorises the action;** (my emphasis)

(c) a material error of law or fact has occurred;

(d) a power has been exercised for a purpose other than that for which the power was conferred;

(e) fraud, corruption or favour or disfavour was shown to any person on irrational grounds;

(f) bad faith has been exercised;

(g) a discretionary power has been improperly exercised at the direction, behest or request of another person;

(h) a discretionary power has been exercised in accordance with a direction as to policy without regard to the merits of the case in question;

(i) a power has been exercised in a manner which constitutes an abuse of that power;

(j) the action taken is so unreasonable that no reasonable person would have taken it;

(k) there is any evidence or other material which provides a reasonable or rational foundation to justify the action taken;

(l) an irrelevant matter has been taken into account;

(m) a relevant matter has not been taken into account;

(n) a breach of the rules of natural justice, where applicable, has occurred;

(o) the procedures specified by law have been followed;

(p) any departure from the requirements of section three is in the circumstances reasonable and justifiable.

Section 193 of the CEA allows seizure of articles whose definition includes motor vehicles. More importantly s193 (6) (a) and (b) authorises the Commissioner to release conditional or unconditional including ordering payment of a fine or forfeiture. The action taken is covered by s5 (b) of the AJA. While I agree with the submission on behalf of the applicant that there should be no differential treatment, what essentially he has submitted is a letter communicating a decision to a third party. He has not shown in what manner their matters are similar. As already stated, the applicant admitted a breach of the law and he actually contradicted himself in trying to place liability on Florance who in one breath is his 'sister' and in another his 'wife'. It is clear that s104 of the regulations does not apply to the applicant. He cannot therefore be heard to claim that the section does not provide for forfeiture of a vehicle.

DISPOSITION

This application has no merit. The importation of the vehicle into Zimbabwe under a TIP was clearly meant to circumvent the laws of Zimbabwe. The applicant admitted that there was a breach of the law and rightly so. The law allows the respondent through its Commissioner to either unconditionally or with conditions such as payment of a fine, order release of an article or forfeiture. The notice of seizure states so clearly. The Commissioner has discretion. Given the circumstances of the clear deception by the applicant, the Commissioner cannot be faulted for ordering forfeiture. The Commissioner acted lawfully, reasonably and fairly after affording the applicant his right to be heard.

On costs, I note that the applicant in the draft order seeks no order as to costs. It is therefore apt that there be no order as to costs.

Accordingly, it is ordered as follows:-

1. The application is dismissed.

2. There shall be no order as to costs.

Tembani/ Gomo Law Practice, applicant's legal practitioners

Zimbabwe Revenue Authority Legal Division, respondent's legal practitioners